

IN THE CIRCUIT COURT OF _____ COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

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VS.

CAUSE NO. _____

DEFENDANT'S NAME

PETITIONER

Race and Gender: _____

DOB: _____

SSN: _____

Charge: _____

Offense Date: _____

Arrest Date: _____

Arresting Agency: _____

Agency Case No.: _____

Disposition Date: _____

Judgment of Court: Order of Dismissal

ORDER FOR DISMISSAL AND EXPUNGEMENT OF CRIMINAL RECORD

These matters having come before the Court on the *Petition for Dismissal and Expungement of Criminal Record* of the **Petitioner (name)** _____ by and through his attorney, in the above-styled and numbered cause wherein the Petitioner was charged with _____ as outlined below:

Race and Gender: _____

DOB: _____

SSN: _____

Charge: _____

Offense Date: _____

Arrest Date: _____

Arresting Agency: _____

Agency Case No.: _____

Disposition Date: _____

Judgment of Court: Order of Dismissal

And, the Court finding that the Petitioner meets the criteria for expungement as set out in section 99-15-26(5) and 99-19-71 (4) of the Mississippi Code of 1972, as annotated and amended.

IT IS, THEREFORE, ORDERED AND ADJUDGED, that this cause shall be and is

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hereby expunged and all records of the Petitioner's arrest and/or dismissal be expunged.

IT IS FURTHER ORDERED AND ADJUDGED that all persons (including, but not limited to, _____ (agency) Police Department, _____

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(Washington, Sunflower, or Leflore) County Justice Court, and _____

(Washington, Sunflower, or Leflore) County Sheriff's Department) keeping or maintaining any official records in this matter, including photographs, affidavits, statements, and/or pleas, except fingerprint records, are hereby directed to expunge all official records or recordations related to the Petitioner's arrest and/or dismissal. The effect of this order shall be to restore the Defendant, in contemplation of the law, to the status the Defendant occupied prior to such arrest and/or dismissal. The Defendant shall not hereafter under any provision of any law, be guilty of perjury or otherwise giving a false statement by reason of her failure to recite or acknowledge such arrest and dismissal in response to any inquiry made of her for any purpose.

ORDERED AND ADJUDGED, this, the ____ day of _____, 2020.

CIRCUIT COURT JUDGE

PETITIONER (name) _____

APPROVED AS TO FORM:

DISTRICT ATTORNEY'S OFFICE

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